

Franciscus Dylan Rosario,
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Plaintiff in propria persona

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF CONTRA COSTA**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: C26-02801

UNLIMITED CIVIL CASE

Amount demanded exceeds
thirty-five thousand dollars

JURY TRIAL DEMANDED

VERIFIED COMPLAINT FOR

COMMON-LAW FRAUDULENT

MISREPRESENTATION

(Civ. Code, secs. 1709, 1710, subd. (1))

(Moradi-Shalal (1988) 46 Cal.3d 287,

304-305; Zhang (2013) 57 Cal.4th 364, 377)

Wakefield Taylor Courthouse

(Martinez)

Case No.: C26-02801

Plaintiff Franciscus Dylan Rosario ("Plaintiff") alleges as follows.

I. NATURE OF THE ACTION

1. This is an unlimited civil action for a single count of common-law fraudulent misrepresentation under Civil Code sections 1709 and 1710, subdivision (1).

2. The wrong arises exclusively from Defendant's non-protected, purely commercial affirmative misrepresentations made directly to Plaintiff in the ordinary, routine course of business adminis-

1 tration regarding Claim No. 1004-09-1054. On February 25, 2021, Defendant, through its Claims
2 Representative Sarah Rash, acting in the course and scope of her employment and authority as
3 Defendant's corporate speaker (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638), issued a
4 formal written claims-handling communication to Plaintiff affirmatively representing as a matter
5 of past historical fact that Defendant had already concluded its investigation of the claim and had
6 carefully reviewed the facts and circumstances of the claim. Those are the letter's exact words.
7 The alleged falsity concerns what Defendant had actually done before making that representation.
8 The letter does not state that public-safety records were gathered, and it does not state that no such
9 records existed. Said communication was issued years prior to any actual or contemplated judicial
10 proceeding.

11 3. Defendant transmitted this writing solely as a routine claims-handling and claim-disposition
12 communication in the ordinary course of its insurance business. The letter was generated and
13 sent by Defendant's claims representative in the performance of Defendant's ordinary claims-
14 administration function. It was not a demand letter, litigation notice, settlement demand, attorney-
15 to-attorney communication, or communication prepared for or in furtherance of a judicial pro-
16 ceeding. At the time the statement was made, no litigation between Plaintiff and Defendant was
17 pending, threatened, or contemplated; no complaint had been filed; no litigation demand had been
18 made; no attorney had appeared for Plaintiff in connection with the claim; no settlement negoti-
19 ations concerning contemplated litigation were underway; Defendant had not retained litigation
20 counsel concerning Plaintiff; Defendant's letter did not reference any anticipated judicial proceed-
21 ing; and no judicial proceeding existed to which the communication related. Defendant's letter
22 instead communicated its purported investigation and disposition of the insurance claim as routine
23 commercial claims disposition in the ordinary course of business. An insurer's internal business
24 decision cannot retroactively be recast as protected petitioning or Civil Code section 47, subdi-
25 vision (b), litigation conduct. (*Action Apartment Assn., Inc. v. City of Santa Monica* (2007) 41
26 Cal.4th 1232, 1251; *Baral v. Schnitt* (2016) 1 Cal.5th 376, 396; *People ex rel. Fire Ins. Ex-*
27 *change v. Anapol* (2012) 211 Cal.App.4th 809, 824; *Nguyen v. Proton Technology Corp.* (1999)
28 69 Cal.App.4th 140, 147-148; *Shannon v. Telecommunications Co.* (1996) 45 Cal.App.4th 244,

254.)

4. At the time Defendant made said affirmative representations, Defendant's claim file held an empty evidentiary repository containing no 911 audio, no body-worn camera recording, no computer-aided dispatch (CAD) record, no documented request for those records, no receipt of those records, and no documented review of those records regarding the silent-witness emergency service recordings and eyewitness accounts. Defendant is bound by later written representations that it reviewed the available evidence, including statements of its insured, and that it performed an investigation before informing Plaintiff of its decision. Those representations concern completeness of Claim No. 1004-09-1054 as of February 25, 2021. They are party admissions under Evidence Code sections 1220 and 1222. The official police report of the February 4, 2021 vehicle-pedestrian collision specifically cites 911 recordings and other contemporaneous materials, including the existence of body-worn cameras. A true and correct copy of that official police report is attached as Exhibit B and incorporated herein by reference. Defendant's representations that an investigation had been concluded and that the facts had been carefully reviewed were factually false because Defendant's own claim-file evidence demonstrates that the asserted investigative acts had not occurred. Representing a concluded investigation and a careful review of available facts while possessing an empty evidentiary repository constituted an affirmative factual falsehood designed to induce forbearance. Defendant made these affirmative representations knowing they were false, with the specific intent to induce Plaintiff into believing that an institutional inquiry had taken place and that all official records had already been cataloged and evaluated, thereby causing Plaintiff to forgo timely, standard-rate preservation and retrieval of official public records. (Civ. Code, sec. 1709; *Vega v. Jones, Day, Reavis & Pogue* (2004) 121 Cal.App.4th 282, 291.)

5. Plaintiff seeks direct, out-of-pocket pecuniary damages under Civil Code section 3333 exceeding the jurisdictional threshold of thirty-five thousand dollars, representing the specific differential between standard contemporaneous public-records retrieval rates under one hundred dollars and the extraordinary forensic data recovery, legacy magnetic media extraction, third-party subpoena, and lost-earnings categories directly caused by delayed retrieval, according to proof. (*Stout v. Turney* (1978) 22 Cal.3d 718, 725; *Alliance Mortgage Co. v. Rothwell* (1995) 10 Cal.4th 1226,

1240-1241.)

6. Plaintiff demands a jury trial on all issues so triable.

II. PARTIES

7. Plaintiff Franciscus Dylan Rosario is an individual residing in California. Plaintiff was designated by Defendant as a third-party claimant on internal Claim No. 1004-09-1054 following a vehicle-pedestrian collision in which Plaintiff was struck as a pedestrian. Plaintiff never submitted a claim, never demanded an internal file be opened, and never initiated dispute procedures before this action.

8. Defendant CSAA Insurance Exchange (“Defendant”) is a California interinsurance exchange that issues and administers automobile liability insurance in California.

9. Defendant maintains its principal place of business and Corporate Claims Operations at 3055 Oak Road, Walnut Creek, Contra Costa County, California 94597. Corporate Claims Operations at that location formulated, directed, and authorized the corporate claims policies, electronic claim database protocols, and zero-disposition file closure rules executed in Claim No. 1004-09-1054. Claims personnel at that location open claim files, record zero-disposition closures, and maintain electronically stored information, audit trails, and claims databases. (Code Civ. Proc., sec. 2031.010 et seq.; Evid. Code, sec. 1271.)

10. Defendant opened, administered, generated representations for, and closed Claim No. 1004-09-1054 at 3055 Oak Road, Walnut Creek.

11. At all times mentioned, Defendant’s officers, claims handlers, supervisors, and agents, including Claims Representative Sarah Rash, acted within the course and scope of their agency and employment in generating and transmitting the fraudulent communications at issue. Defendant is legally responsible for those acts.

12. Plaintiff is ignorant of the true names and capacities of Defendants sued as Does 1 through 50 and will amend this Complaint when those names are ascertained. Plaintiff is informed and believes that each Doe defendant participated in, directed, authorized, or ratified the affirmative misrepresentations concerning Claim No. 1004-09-1054, or is otherwise legally responsible for the wrongful acts alleged.

1 13. Whenever this Complaint refers to “Defendant,” the reference includes Defendant CSAA
2 Insurance Exchange and, as later identified, those Doe defendants who participated in or ratified
3 the acts alleged.

4 **III. JURISDICTION AND VENUE**

5 14. This Court has subject-matter jurisdiction. This is an unlimited civil action wherein the amount
6 in controversy exceeds the jurisdictional threshold of thirty-five thousand dollars, exclusive of
7 interest and costs.

8 15. This Court has personal jurisdiction over Defendant. Defendant’s principal corporate offices
9 and claims administration facilities are located in Contra Costa County, where the tortious acts and
10 corporate decisions were formulated, executed, and communicated.

11 16. Venue is proper in Contra Costa County under Code of Civil Procedure section 395.5 because
12 Defendant’s principal place of business is situated in Contra Costa County, and the liability and
13 tortious conduct arose at Defendant’s Corporate Claims Operations located at 3055 Oak Road,
14 Walnut Creek.

15 17. The underlying vehicle-pedestrian collision of February 4, 2021, is cited solely as the external
16 historical occurrence prompting Defendant to open its internal file. This action does not seek
17 adjudication of underlying bodily injury damages, medical specials, or motor vehicle tort liability
18 from the collision itself.

19 18. This action does not allege that Defendant owed Plaintiff insurance benefits, that Defendant’s
20 insured was liable for the underlying collision, that Defendant breached an insurance contract with
21 Plaintiff, or that Defendant violated statutory settlement standards under Insurance Code section
22 790.03. Plaintiff expressly concedes that Defendant owed Plaintiff no common-law duty of good
23 faith, no contractual duty, and no Insurance Code section 790.03 duty to investigate. Liability, if
24 any, is solely for common-law deceit under Civil Code sections 1709 and 1710. Having volun-
25 tarily elected to issue a positive statement of past historical fact (that an investigation had been
26 concluded and available facts carefully reviewed), Defendant assumed an independent common-
27 law duty not to affirmatively misrepresent those physical acts (*Randi W. v. Muroc Joint Unified*
28 *Sch. Dist.* (1997) 14 Cal.4th 1066, 1081). Under the express reservation and carveout articulated

1 by the California Supreme Court in *Moradi-Shalal v. Fireman's Fund Ins. Companies* (1988)
2 46 Cal.3d 287, 304-305, the abolition of direct statutory bad-faith claims by third-party claimants
3 does not preclude or immunize insurers against traditional common-law causes of action, specif-
4 ically including intentional deceit and fraudulent misrepresentation. (See also *Zhang v. Superior*
5 *Court* (2013) 57 Cal.4th 364, 377; *Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th
6 26, 44-45.) This independent common-law intentional tort is fully preserved. The alleged fraud
7 concerns exclusively the separate, affirmative common-law representation of historical fact regard-
8 ing what investigative work Defendant had actually performed before issuing that communication:
9 Defendant represented that it had concluded its investigation and carefully reviewed the facts and
10 circumstances of the claim. Plaintiff alleges that representation was false because Defendant's own
11 claim-file evidence shows that the investigative acts represented as completed had not occurred. In-
12 surance Code section 790.03 is identified here only as a conceded non-duty. It is not a standard of
13 care.

14 19. Plaintiff brings this action in Contra Costa County only and does not plead any other venue for
15 this Complaint.

16 **IV. [RESERVED]**

17 20. Reserved.

18 **V. FACTS**

19 21. On or about February 4, 2021, a motor vehicle-pedestrian collision occurred involving a ve-
20 hicle operated by Defendant's insured, Subhi Abdelhalim, and Plaintiff as the pedestrian. Plaintiff
21 did not file a claim, execute a claim form, demand that an internal file be opened, or solicit claims
22 administration. Defendant unilaterally opened Claim No. 1004-09-1054 as an internal administra-
23 tive file.

24 22. Defendant assigned Claim No. 1004-09-1054 as the internal identifier for that file. That number
25 identifies the file whose investigation Defendant represented as concluded.

26 23. Defendant's claims administration was an internal, proprietary operational process conducted
27 from on or about February 4, 2021, through on or about February 25, 2021, at Corporate Claims
28 Operations, 3055 Oak Road, Walnut Creek, Contra Costa County.

1 24. The electronic claim file, audit trails, and internal file-state were maintained exclusively within
2 Defendant's closed proprietary claims database. Access was strictly restricted to Defendant's per-
3 sonnel. Plaintiff was barred from access, lacked login credentials, and had no administrative
4 means to inspect internal file contents or verify whether Defendant had gathered emergency service
5 records.

6 25. File-state means the actual contents and omissions of Claim No. 1004-09-1054 at internal
7 closure, specifically including whether the file contained or lacked 911 audio, body-worn camera
8 recordings, and computer-aided dispatch records.

9 26. On February 25, 2021, Sarah Rash, Claims Representative of CSAA Insurance Exchange, sent
10 a written letter to Plaintiff concerning Claim No. 1004-09-1054. The letter is on AAA Insurance
11 letterhead showing P.O. Box 24523, Oakland, California 94623-1523, telephone 800.922.8228,
12 and fax 877.548.1610. The footer states "Policy issued by CSAA Insurance Exchange." The letter
13 is dated February 25, 2021. It is addressed to Franciscus Rosario at 835 Terry A Francois Blvd,
14 San Francisco, California 94158-2209. The reference block identifies Insured: Subhi Abdelhalim;
15 Claim No.: 1004-09-1054; Date of Loss: February 04, 2021. The greeting is "Dear Franciscus
16 Rosario:". The letter states: "We have concluded our investigation of your claim." It further
17 states: "Based on our investigation, and after carefully reviewing the facts and circumstances of
18 your claim, we have concluded that our insured is not liable for your damages resulting from
19 this loss. Therefore we must decline your claim. In addition, we dispute your right to recover
20 the amount of damages you have claimed." It further states: "Our decision is based on the facts
21 currently available." It is signed "Sincerely," then "Sarah Rash," "Claims Representative," with
22 the printed telephone number 856-209-7086. The medium is that letter. This Complaint does not
23 allege a telephone call or any other spoken statement by Sarah Rash. Walnut Creek is the claims-
24 administration location. The letterhead does not name Walnut Creek. A true and correct copy of
25 that February 25, 2021 letter is attached as Exhibit A and incorporated herein by reference.

26 27. Defendant transmitted this February 25, 2021 letter strictly as an ordinary business claims
27 communication. At that time no litigation was pending, threatened, or contemplated between the
28 parties; no demand for litigation had been made; no attorney had appeared for Plaintiff; no settle-

1 ment demand was pending; Defendant had not retained litigation counsel concerning Plaintiff; and
2 Defendant's letter did not reference any anticipated judicial proceeding. The February 25, 2021
3 communication preceded any actual or contemplated litigation by multiple years and was not made
4 in furtherance of, or in serious anticipation of, any judicial proceeding. The absolute privilege of
5 Civil Code section 47, subdivision (b), and the protections of Code of Civil Procedure section
6 425.16 therefore do not apply. (*Action Apartment Assn., Inc. v. City of Santa Monica* (2007) 41
7 Cal.4th 1232, 1251; *Flatley v. Mauro* (2006) 39 Cal.4th 299, 320; *People ex rel. Fire Ins. Ex-*
8 *change v. Anapol* (2012) 211 Cal.App.4th 809, 824; *Nguyen v. Proton Technology Corp.* (1999)
9 69 Cal.App.4th 140, 147-148.) Defendant later described the same writing as an ordinary claims-
10 disposition communication issued in ordinary claims-investigation work, and as routine practice in
11 the insurance industry. That factual description confirms that the communication was an ordinary
12 commercial act rather than petitioning activity. Whether Civil Code section 47, subdivision (b), or
13 Code of Civil Procedure section 425.16 applies is a question of law on the 2021 facts in paragraphs
14 3 and 27, not a label Defendant may attach after the fact. No judicial proceeding between Plaintiff
15 and Defendant existed on that date.

16 28. In that February 25, 2021 communication, Defendant affirmatively represented in writing the
17 sentences quoted in paragraph 26.

18 29. Those representations were affirmative statements of historical and existing material fact re-
19 garding the actual execution and completion of an investigative review. Defendant's statements did
20 not constitute non-actionable expressions of opinion or legal argument, but rather positive, affirma-
21 tive assertions of existing historical fact regarding specific operational acts Defendant claimed to
22 have completed, including that an institutional inquiry had been physically performed. (Civ. Code,
23 sec. 1710, subd. (1); *Gagne v. Bertran* (1954) 43 Cal.2d 481, 487-489; *Vega v. Jones, Day, Reavis*
24 *& Pogue* (2004) 121 Cal.App.4th 282, 291.)

25 30. The statements were factually false when made. At the time the letter was sent, Defendant's
26 claim file and production records contained no 911 audio, no body-worn camera recordings, no
27 CAD records, no documented request for those records, no receipt of those records, and no docu-
28 mented review of those records regarding the February 4, 2021 vehicle-pedestrian collision. The

1 official police report of that collision specifically cited 911 recordings and the existence of body-
2 worn cameras. Those report-cited materials were part of the facts then available. Representing a
3 concluded investigation and a careful review of the facts, while gathering none of those report-cited
4 records and leaving those report-cited 911, body-worn camera, and CAD records unrequested, was
5 an affirmative factual falsehood. The police report is Exhibit B.

6 31. In later civil proceedings concerning Claim No. 1004-09-1054, Defendant through counsel
7 represented both that it had reviewed the available evidence and performed an investigation, and
8 that Plaintiff had no way of knowing what investigative steps Defendant had taken and had only the
9 February 25, 2021 letter. Defendant through counsel also represented in signed writings that the
10 911 audio and related recordings had not been produced from Defendant's files, that Defendant did
11 not know their provenance, and that the materials were later supplied from Plaintiff's side. Those
12 representations are offered solely as evidentiary party admissions under Evidence Code sections
13 1220 and 1222 confirming the contents and omissions of Claim No. 1004-09-1054 on February
14 25, 2021. They are not the communications on which this Count is based. (*Park v. Board of*
15 *Trustees* (2017) 2 Cal.5th 1057, 1060; *Baral v. Schnitt* (2016) 1 Cal.5th 376, 393-396; *Kimmel*
16 *v. Goland* (1990) 51 Cal.3d 202, 209-213.) Gathering the 911 recordings and body-worn camera
17 materials cited in Exhibit B was Defendant's own investigative task in performing the investigation
18 it represented as concluded. Plaintiff did not receive those records from Defendant. Plaintiff later
19 obtained them from public-safety agencies at delayed cost and served them on Defendant. Serving
20 those records did not discharge Defendant's already-represented-as-completed gather-and-review,
21 did not mean Defendant had collected them in February 2021, and does not make the letter true.

22 32. The February 25, 2021 letter was ordinary commercial claims work. While Plaintiff asserts
23 no private right of action under Insurance Code section 790.03 or California Code of Regulations,
24 title 10, section 2695.7, those provisions establish the mandatory objective baseline for claims-
25 handling practices in California (*Zhang v. Superior Court* (2013) 57 Cal.4th 364, 377). California
26 Code of Regulations, title 10, section 2695.7, subdivision (b), mandates that no insurer shall deny
27 a claim without conducting a full and thorough investigation, and section 2695.7, subdivision
28 (c), requires written disclosure of the factual basis for any denial. Having voluntarily elected to

1 issue a formal written claims disposition, Defendant assumed an independent common-law duty
2 to tell the truth after that voluntary written disposition and not to misrepresent those physical acts
3 (*Randi W. v. Muroc Joint Unified Sch. Dist.* (1997) 14 Cal.4th 1066, 1081). Defendant held
4 out its February 25, 2021 written communication as a compliant, fully investigated disposition.
5 Plaintiff cited these standards solely as an objective measure of standard commercial practice and
6 as customary-practice evidence that reliance on a completed investigation was justified, and to
7 demonstrate that Defendant's affirmative representation of a completed, careful investigation was
8 designed to simulate regulatory compliance while secretly concealing an empty claims repository.
9 The companion Request for Judicial Notice filed concurrently with this Complaint is not a Count
10 and does not supply a private right of action.

11 33. In truth and in fact, Defendant's affirmative representations that it had concluded its investi-
12 gation and had carefully reviewed the facts were false because Defendant requested, gathered, and
13 reviewed zero police-report-cited 911 recordings, body-worn camera recordings, and computer-
14 aided dispatch records. Defendant executed a pre-determined administrative zero-disposition work-
15 flow on an empty evidentiary repository of evidence it affirmatively chose not to collect, while
16 assuring Plaintiff that an exhaustive factual review had occurred.

17 34. Defendant was the sole custodian of Claim No. 1004-09-1054. Defendant's own claim file
18 and activity records established, at the time of the representation, that the identified investigative
19 acts had not occurred. On or about February 25, 2021, Defendant's claims personnel closed the
20 file twenty-one days after opening it with an internal zero-disposition code without obtaining or
21 reviewing primary public-safety records, while affirmatively assuring Plaintiff that a careful, com-
22 pleted factual investigation had occurred.

23 35. Defendant made these affirmative false statements with the intent to deceive Plaintiff, to fab-
24 ricate the appearance of an exhaustive factual review, and to induce Plaintiff to rely on that repre-
25 sentation by remaining passive and refraining from independently procuring public-safety records.

26 36. Plaintiff had no access to Defendant's exclusive claim database and possessed no adminis-
27 trative credentials, login rights, or other means of inspecting Claim No. 1004-09-1054. Nothing
28 available to Plaintiff put a reasonable person on inquiry notice that Defendant's affirmative factual

1 representation was false. Defendant had exclusive custody of Claim No. 1004-09-1054. Because
2 Defendant possessed exclusive, superior knowledge regarding its own operational acts, Plaintiff
3 had no independent legal duty to inspect, audit, or verify Defendant's representations. Plaintiff did
4 not rely on Defendant's legal opinion or non-liability conclusion. Plaintiff relied on the completed-
5 investigation representation, strictly on Defendant's positive assertion of past historical fact: that
6 an investigation had been concluded and available facts carefully reviewed. Plaintiff's reliance on
7 Defendant's positive factual statements was justifiable as a matter of law. Plaintiff had no duty to
8 inspect Defendant's internal files and justifiably relied at arm's length. (*Alliance Mortgage Co. v.*
9 *Rothwell* (1995) 10 Cal.4th 1226, 1239; *Seeger v. Odell* (1941) 18 Cal.2d 409, 414-415.)

10 37. In direct reliance upon Defendant's positive representation that an institutional factual inves-
11 tigation had been completed and all facts reviewed, Plaintiff was deceived into believing that all
12 primary evidence had been evaluated and found legally deficient. Said reliance directly induced
13 Plaintiff to alter his position by: a. Refraining from initiating timely public-records extraction
14 in February 2021; b. Indefinitely suspending and delaying pre-litigation settlement negotiations,
15 dispute resolution, and formal claims settlement demands under the reasonable belief that the fac-
16 tual record was closed; and c. Forgoing immediate administrative and legal remedies to resolve
17 the underlying claim during the active retention window of primary municipal records (*Small v.*
18 *Fritz Companies, Inc.* (2003) 30 Cal.4th 167, 174-175). Had Defendant not falsely represented a
19 completed factual investigation, Plaintiff would have immediately retrieved the active records and
20 presented a complete, unassailable evidentiary record to initiate prompt settlement proceedings in
21 2021.

22 38. Plaintiff first discovered the internal file-state on or about April 16, 2025. On or about April
23 16, 2025, Plaintiff first discovered, from Defendant's verified discovery responses, file activity
24 logs, and production indices in related civil proceedings, that Claim No. 1004-09-1054 had been
25 closed without those records having been acquired, requested, or reviewed. The existence of public
26 911 and body-worn camera materials does not put a claimant on notice that Defendant's internal
27 file was empty. Plaintiff did not receive the public-safety records from Defendant. Plaintiff did
28 not receive 911 audio, body-worn camera recordings, or CAD records from Defendant. Earlier

1 signed writings about non-production and unknown provenance concerned production in those
2 later proceedings and did not disclose the internal contents of the Walnut Creek claim file. Because
3 Defendant exclusively possessed and controlled its internal software audit logs, Plaintiff could not
4 through reasonable diligence have discovered the false file-state earlier. Accrual of file-state facts
5 is April 16, 2025. (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 807-809; *Grisham v.*
6 *Philip Morris U.S.A., Inc.* (2007) 40 Cal.4th 623, 634-635; Code Civ. Proc., sec. 338, subd. (d).)

7 39. Prior to April 16, 2025, Plaintiff possessed no notice or facts that would lead a reasonable
8 person to suspect that Defendant's representations were false or that its investigative repository
9 was empty.

10 40. Plaintiff had already located, restored, and procured the 911 audio recordings, body-worn
11 camera video, and CAD logs from municipal public-safety agencies at delayed cost and had served
12 them on Defendant. After discovering the empty file-state on or about April 16, 2025, Plaintiff
13 incurred and continued to incur the extraordinary retrieval and restoration costs pleaded in the
14 following paragraph. Service on Defendant did not constitute Defendant's 2021 investigation.

15 41. As a direct and proximate result of Defendant's affirmative deceit, the resolution and settle-
16 ment of the underlying claim were delayed by over four years, during which time primary munici-
17 pal records degraded and migrated into offline magnetic archives. As a direct causal consequence
18 of the reliance, multi-year delay, and necessity to independently reconstruct the missing eviden-
19 tiary file-state, Plaintiff suffered direct out-of-pocket economic damages under Civil Code section
20 3333 consisting of: a. Extraordinary municipal agency legacy archival retrieval fees, de-archiving
21 surcharges, and third-party forensic tape extraction costs; b. Third-party subpoena fees, process-
22 server charges, and officer-production expenses incurred at San Francisco Superior Court, neces-
23 sitated solely to compel production and certification of degraded or withheld public-safety records
24 as direct Civil Code section 3333 mitigation, and not as ordinary costs of suit; c. Lost earnings
25 while reconstructing silent-witness media, including 911 audio, body-worn camera footage, and
26 computer-aided dispatch logs, that Defendant falsely represented had already been collected and
27 reviewed, according to proof; and d. Direct pecuniary loss caused by the multi-year derailment and
28 delay of formal claims settlement opportunities (*Small v. Fritz Companies, Inc.* (2003) 30 Cal.4th

167, 174-175; *Stout v. Turney* (1978) 22 Cal.3d 718, 725).

42. Had Defendant not made the false representation in February 2021, Plaintiff would have obtained the complete public-safety records contemporaneously for standard administrative reproduction fees under one hundred dollars, without incurring extraordinary third-party subpoena expenses, lost earnings, or forensic restoration surcharges. Because of Defendant's fraud and the resulting multi-year delay, Plaintiff incurred actual, out-of-pocket pecuniary losses exceeding thirty-five thousand dollars to retrieve and reconstruct those same records, according to proof. These specific expenditures constitute direct financial detriment under Civil Code section 3333 and are recoverable as fraud-mitigation damages. (*Stout v. Turney* (1978) 22 Cal.3d 718, 725; *Alliance Mortgage Co. v. Rothwell* (1995) 10 Cal.4th 1226, 1240-1241.) Plaintiff does not seek personal injury damages, bodily impairment damages, or general tort damages arising from the collision.

VI. FIRST AND SOLE CAUSE OF ACTION

COMMON-LAW FRAUDULENT MISREPRESENTATION

(Civ. Code, secs. 1709, 1710, subd. (1)) Against Defendant CSAA Insurance Exchange and Does 1 through 50

43. Plaintiff incorporates paragraphs 1 through 42.

44. Civil Code section 1709 provides that one who willfully deceives another with intent to induce him to alter his position to his injury or risk is liable for any damage which he thereby suffers.

45. Civil Code section 1710, subdivision (1), defines deceit to include the suggestion, as a fact, of that which is not true, by one who does not believe it to be true.

46. Defendant made affirmative representations of material fact directly to Plaintiff via the February 25, 2021 correspondence, specifically stating that Defendant had concluded an investigation and had carefully reviewed the facts and circumstances of the claim. Those statements are the February 25, 2021 letter's words quoted in paragraph 26.

47. The statements were affirmative falsehoods. At the time the statements were made, Defendant's claim file and activity logs contained no 911 audio, no body-worn camera recordings, no CAD records, no documented request for those records, no receipt of those records, and no documented review of those records, even though the official police incident report of the February

1 4, 2021 vehicle-pedestrian collision specifically cited 911 recordings and the existence of body-
2 worn cameras. Defendant's later written representations that it reviewed the available evidence
3 and performed an investigation, and that the 911 audio and related recordings were not produced
4 from Defendant's files, are party admissions under Evidence Code sections 1220 and 1222 and are
5 evidence of that 2021 emptiness as alleged in paragraph 31. Those later writings are not a second
6 Count.

7 48. Sarah Rash acted under the direct direction, supervision, and authorization of Corporate Claims
8 Operations management at 3055 Oak Road, Walnut Creek, whose exact names are currently un-
9 known Doe defendants. Defendant, through those managing agents and through Claims Represen-
10 tative Sarah Rash, had actual corporate knowledge that the representations were false when made.
11 Internal audit logs, electronic claim history, and production indexes for Claim No. 1004-09-1054
12 showed zero public-safety record requests and zero records received. (*Lazar v. Superior Court*
13 (1996) 12 Cal.4th 631, 645; *Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153,
14 157; *Thrifty-Tel, Inc. v. Bezenek* (1996) 46 Cal.App.4th 1559, 1567.)

15 49. Defendant made these affirmative false statements regarding the operation, scope, and com-
16 pletion of its internal administrative inquiry with the specific intent to deceive Plaintiff and induce
17 forbearance, causing Plaintiff to forgo contemporaneous, direct record acquisition and shifting the
18 entire expense of evidence reconstruction onto Plaintiff. (*Engalla v. Permanente Medical Group,*
19 *Inc.* (1997) 15 Cal.4th 951, 974; *Robinson Helicopter Co., Inc. v. Dana Corp.* (2004) 34 Cal.4th
20 979, 990-991; *Vega v. Jones, Day, Reavis & Pogue* (2004) 121 Cal.App.4th 282, 291.)

21 50. Plaintiff reasonably and justifiably relied upon Defendant's affirmative representations of com-
22 pleted investigative review. Plaintiff had no access to Defendant's proprietary claims software, had
23 no administrative credentials, and had no reason to suspect that an established insurance carrier
24 would falsely state that an investigation had been concluded when no public records had been
25 gathered or reviewed. (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638; *Mirkin v. Wasserman*
26 (1993) 5 Cal.4th 1082, 1091-1092; *Alliance Mortgage Co. v. Rothwell* (1995) 10 Cal.4th 1226,
27 1239; *Seeger v. Odell* (1941) 18 Cal.2d 409, 414-415; *Boeken v. Philip Morris, Inc.* (2005) 127
28 Cal.App.4th 1640, 1666-1667.)

1 51. As a direct and proximate result of Defendant's fraud and Plaintiff's reasonable reliance,
2 Plaintiff suffered actual pecuniary injury under Civil Code section 3333 exceeding thirty-five thou-
3 sand dollars, according to proof. Those injuries include the out-of-pocket extra retrieval, forensic
4 restoration, third-party subpoena mitigation, and lost-earnings categories alleged in paragraphs 41
5 and 42, and are not restated here. (*Stout v. Turney* (1978) 22 Cal.3d 718, 725; *Alliance Mortgage*
6 *Co. v. Rothwell* (1995) 10 Cal.4th 1226, 1240-1241.) Plaintiff does not seek policy proceeds,
7 statutory bad-faith remedies, or collision damages. Plaintiff seeks only out-of-pocket extra re-
8 trieval, restoration, and mitigation costs under Civil Code section 3333 caused by forbearance,
9 including the categories alleged in paragraphs 41 and 42.

10 52. The action is timely under Code of Civil Procedure section 338, subdivision (d). Plaintiff
11 discovered the facts constituting the fraud on April 16, 2025, when the inventory showed the 2021
12 file never held the records. Plaintiff did not discover those internal file-state facts from Defendant's
13 earlier non-production statements, which did not reveal Claim No. 1004-09-1054. Plaintiff never
14 received the public-safety records from Defendant. Plaintiff could not through reasonable diligence
15 have discovered those internal file-state facts earlier because Defendant exclusively possessed and
16 controlled the claim file and its internal activity records. (*Fox v. Ethicon Endo-Surgery, Inc.* (2005)
17 35 Cal.4th 797, 807-809; *Grisham v. Philip Morris U.S.A., Inc.* (2007) 40 Cal.4th 623, 634-635.)

18 53. Defendant's fraudulent misrepresentations were formulated, authorized, and ratified by De-
19 fendant's corporate claims supervisors and managing agents at its Walnut Creek Corporate Claims
20 Operations, pursuant to an institutional policy of executing zero-disposition file closures on empty
21 repositories while falsely representing to third-party claimants that an investigation had been com-
22 pleted. Said conduct was committed willfully, maliciously, and with fraudulent intent under Civil
23 Code section 3294, justifying an award of exemplary and punitive damages. (*White v. Ultramar,*
24 *Inc.* (1999) 21 Cal.4th 563, 572-574.)

25 **VII. PRAYER FOR RELIEF**

26 WHEREFORE, Plaintiff prays for judgment against Defendant as follows:

27 1. For compensatory and direct pecuniary damages exceeding thirty-five thousand dollars, accord-
28 ing to proof;

2. For punitive and exemplary damages pursuant to Civil Code section 3294 according to proof;
3. For pre-judgment interest accrued on the out-of-pocket reconstruction expenditures during the delay period pursuant to Civil Code sections 3287 and 3288, including forensic extraction and mitigation outlays, and for post-judgment interest as permitted by law;
4. For costs of suit incurred herein; and
5. For such other and further relief as the Court deems just and proper.

Dated: August 24, 2026



Franciscus Dylan Rosario
Plaintiff in propria persona

VERIFICATION

(Code Civ. Proc., secs. 446, 2015.5)

I, Franciscus Dylan Rosario, declare:

I am the Plaintiff in this action. I have read the foregoing Verified Complaint for Common-Law Fraudulent Misrepresentation and know its contents. The matters stated in it are true of my own knowledge except as to those matters stated on information and belief, and as to those matters I believe them to be true.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct. This verification is executed pursuant to Code of Civil Procedure sections 446 and 2015.5.

Executed on August 24, 2026, at Rohnert Park, California.



Franciscus Dylan Rosario